

- RAG Learning

3A.3 US Presidency

Politics — Edexcel (9PL0) — Component 3A: Comparative Politics — USA

Exam Tip: Component 3 has two routes. This is **3A (USA)**; the alternative is **3B (Global Politics)**. You sit one, never both.

Article II is remarkably short. The modern presidency rests far more on **informal** sources of power than on what the Constitution grants — which is why presidential power varies so sharply between holders and why the "imperial presidency" debate exists.

Formal powers — those set out in Article II.

Informal powers — authority derived from mandate, persuasion, media and party leadership.

Executive order — a directive to the federal bureaucracy with the force of law, issued without Congress.

Executive agreement — an international agreement not requiring Senate ratification.

Signing statement — a President's recorded interpretation of a statute on signing it.

Imperial presidency — Schlesinger's term for power accumulated beyond constitutional intention.

Imperilled presidency — the counter-claim that the office is too constrained to govern.

EXOP — the Executive Office of the President; the institutional centre.

Lame duck — a President whose authority has ebbed towards the end of a term.

1. Formal powers (Article II)

Power	Detail	Check on it
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Veto	Reject a bill passed by Congress; a pocket veto if Congress adjourns within ten days	Override by two-thirds of both chambers
Commander-in-Chief	Directs the armed forces	Congress declares war and funds it; the War Powers Resolution 1973
Appointments	Nominates Cabinet secretaries, ambassadors, federal judges	Senate confirmation
Treaties	Negotiates international agreements	Senate ratification by two-thirds
Pardon	Federal offences only	Essentially none — unreviewable
Take care clause	Duty to ensure the laws are faithfully executed	Judicial review; congressional oversight
Recommend measures	Sets the agenda through the State of the Union and the budget	Congress may ignore it entirely

Note what is *absent*: the President cannot introduce legislation, cannot dissolve Congress, and cannot compel it to act. Every significant formal power is shared.

2. Informal powers

- **Executive orders** — allow significant policy without legislation, especially when Congress is deadlocked. Limits: a successor may revoke; courts may strike down; Congress may withhold funds.
- **Executive agreements** — avoid the two-thirds Senate threshold; far more numerous than treaties, and equally reversible by a successor.
- **Signing statements** — record how a statute will be interpreted and enforced.
- **The electoral mandate** — a decisive win strengthens the claim to speak for the country and improves bargaining leverage.
- **The bully pulpit** — command of national attention to shape the agenda and pressure Congress.

- **Party leadership** — a President's party in Congress is far more supportive, so party control is decisive.
- **EXOP and the Cabinet** — the institutional centre. The US Cabinet *advises*; it does not decide, and the President is not bound by it.

Neustadt: the power to persuade

Neustadt argued that the formal powers are too sparse to govern by command: Congress, the courts, the states and the bureaucracy are all actors a President cannot direct. Effective power therefore consists in **bargaining** — convincing others that what the President wants serves their own interest. A President reduced to issuing commands has already failed, because commanding shows persuasion was unavailable. The argument holds even in an era of executive action, since orders still depend on a bureaucracy to implement, courts to uphold and Congress to fund.

3. Relationships

With	Dynamic
Congress	Determined overwhelmingly by party control. Unified government enables a legislative programme; divided government reduces a President to executive action and foreign policy
The Supreme Court	Appointments shape it for decades; the Court can strike down executive action — <i>Youngstown</i> (1952) on the steel seizure is the classic case
The bureaucracy	Agencies have statutory duties, professional cultures and congressional relationships, so direction is often slowed or diluted in execution
The states	Cannot compel states to administer federal programmes; implementation frequently depends on cooperation

4. Limits on presidential power

- **Congress** — the purse, legislation, confirmation, override, investigation, impeachment.

- **The courts** — executive orders struck down; *Youngstown* as the constitutional benchmark.
- **Federalism** — substantial policy areas belong to the states.
- **The bureaucracy** — implementation friction.
- **Term limits** — the 22nd Amendment confines a President to two elected terms; authority ebbs towards lame-duck status.
- **Public opinion and the media** — leverage over Congress depends on standing with the electorate.

Why impeachment is a weak check

Impeachment by the House needs a simple majority; conviction in the Senate needs two-thirds. In a polarised Senate that threshold cannot be reached unless a substantial number of the President's own party defect, and senators face primary electorates loyal to the President. No President has ever been removed by the Senate; Nixon resigned before a vote he would probably have lost, which is the exception proving the rule — his party's support had collapsed. The ultimate constitutional check is therefore unusable precisely against a President who retains his party's support.

5. The imperial presidency debate

Evidence for	Evidence against
Sustained military action without a declaration of war since Korea	Congress can and does block domestic programmes entirely
Growth of executive orders, agreements and signing statements	Courts have struck down executive action repeatedly
Expansion of executive privilege and secrecy; emergency powers	Executive orders are reversed by successors — power without durability
The centre has grown enormously since 1939	Presidents are constrained by the bureaucracy and the states in implementation

<i>Trump v United States</i> (2024): presidents have immunity from criminal prosecution for official acts, absolute for their core constitutional powers	<i>Biden v Nebraska</i> (2023) struck down Biden's student-loan forgiveness as beyond his statutory authority
Trump's second term (from January 2025): a record number of executive orders in the opening months, and restructuring of the federal workforce and agencies with little congressional involvement	Lower courts issued many injunctions against second-term orders, though <i>Trump v CASA</i> (2025) limited nationwide (universal) injunctions
Strikes on Iranian nuclear sites (June 2025) without congressional authorisation	<i>Learning Resources v Trump</i> (20 February 2026, 6–3): the Supreme Court struck down Trump's tariffs imposed under emergency powers (IEEPA)

The judgement: power has expanded *unevenly*. In war, national security and emergency, presidential authority is close to unchecked in practice. In domestic policy it depends entirely on party control of Congress. And the instruments Presidents have gained are weaker than legislation: orders are reversed, struck down or defunded, so each administration undoes its predecessor's work. The presidency is more powerful at any given moment and less able to achieve anything lasting — a change in the *character* of the office rather than a simple increase in its power.

Exam Tip: For a UK/US comparison, the precise formulation is worth memorising: the UK Prime Minister is **more powerful domestically and less secure in office**; the US President is **less able to legislate and cannot be removed by their own party**. Fusion concentrates power and makes the leader dependent on the party; separation disperses power and makes the leader independent of it.

Quick recall

- Article II: veto, Commander-in-Chief, appointments, treaties, pardon, take care, recommend measures
- The President cannot introduce legislation or dissolve Congress

- Informal: executive orders and agreements, signing statements, mandate, bully pulpit, party leadership
- Neustadt: power is the power to persuade
- *Youngstown* (1952) — the courts can stop executive action
- 22nd Amendment: two elected terms
- Impeachment: House majority, Senate two-thirds — no President ever removed
- Judgement: expanded unevenly; instruments gained, durability lost